

25STCV19509 25STCV19509

County: los-angeles

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Case Number: 25STCV19509 Hearing Date: August 17, 2026 Dept: 307

13 TENTATIVE RULING 9:00 a.m., Monday, August 17, 2026

FELIPE

MADRIGAL LEON v. GENERAL MOTORS, LLC [25STCV19509]

DEFENDANT

GENERAL MOTORS' DEMURRER TO THE FIRST AMENDED COMPLAINT

MEET AND

CONFER: OK

[Counsel met and conferred telephonically prior to filing this demurrer. (Perez Decl., ¶ 2.)]

TIMELINE:

Lemon law action

3/3/2019:

Plaintiff Felipe Madrigal Leon ("Plaintiff") enters a warranty contract

with

Defendant General Motors, LLC ("GM") regarding a 2019 Chevrolet Silverado 1500 (the "Vehicle"), which was manufactured and/or distributed by GM. (FAC, Exh. A.) The Vehicle was purchased from GM's authorized retail dealership, Felix Chevrolet. Thereafter, nonconformities to the warranty appear in the Vehicle, including defects in the Vehicle's 8-speed Transmission.

2

8/24/2020

and 1/2/2021: Plaintiff presents the Vehicle to GM's authorized

repair

facility with complaints related to the Vehicle's brakes and acceleration,
respectively. Although GM's repair facility represented that the Vehicle had
been repaired on each occasion, the Vehicle continued to experience symptoms of
the defects after the repairs.

6/30/2025:

Plaintiff files the Complaint.[1]

The operative First Amended

Complaint

("FAC"), filed 6/22/2026, alleges causes of action for:

1.

Violation

of Civ. Code § 1793.2(d)¿

2.

Violation

of Civ. Code § 1793.2(b)¿

3.

Violation

of Civ. Code § 1793.2(a)(3)¿

4.

Breach

of the Implied Warranty of Merchantability

5.

Fraudulent

Inducement-Concealment¿

¿

7/2/2026:

GM files this Demurrer, which is followed by Plaintiff's Opposition

(7/16/2026)

and GM's Reply (7/16/2026).

TENTATIVE

RULING: DEFENDANT GENERAL MOTORS, LLC'S DEMURRER TO THE FIRST AMENDED COMPLAINT is SUSTAINED without leave to amend.

DEMURRER

GM

demurs to each cause of action in the FAC on the grounds that Plaintiff fails to allege sufficient facts to state a cause of action against GM.

A. 1st

through 3rd Causes of Action: Song-Beverly Express Warranty Claims — SUSTAINED without leave to amend

GM argues

that Plaintiff cannot establish his first through third causes of action for violations of the Song-Beverly Act ("SBA") because the claims are barred by the statute of limitations and the statute of repose under Code of Civil Procedure section 871.21.[2] In its prior ruling on the demurrer to the original Complaint, this Court sustained GM's demurrer to the first through third causes of action on the same grounds. (Minute Order, 12/1/2025, at pp. 1-3.) The amended allegations in the FAC do not cure these pre-existing defects.

Section 871.21

states, in relevant part:

(a) An

action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty. ۞۞

(b)

Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle. ۞۞

(Code

Civ. Proc., § 871.21, subds. (a) & (b).)¿Section 871.20,

which identifies the claims which fall under section 871.21, states in relevant part:¿

(a)

[T]his chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.¿

(b) This

chapter does not apply to service contract claims under Section 1794 of the Civil Code or any action seeking remedies that are not restitution or replacement of a motor vehicle.¿

(Code

Civ. Proc., § 871.20.)¿As this

Court has already determined in its ruling on GM's previous demurrer, each of Plaintiff's Civil Code section 1793.2

claims are governed by the limitations periods under section 871.21 because the claims are specifically enumerated under section 871.20. (Minute Order, 12/1/2025, at p. 2.)

In the FAC, Plaintiff alleges that he received the

written warranty from GM on March 3, 2019. (FAC, ¶ 6.) While Plaintiff still does not specifically allege when he purchased the Vehicle, it can reasonably be inferred that the Vehicle was delivered to Plaintiff on or around the same date that he received GM's written warranty. (Id. ¶¶ 6, 8.) Absent

tolling, the six-year deadline to file the instant warranty claims would have expired on March 3, 2025. Nevertheless, Plaintiff did not file the instant lawsuit until June 30, 2025, several months after the statute of repose expired. Thus, the Court finds Plaintiff's first through third

causes of action are time-barred under the six-year outer limit imposed by section 871.21, subdivision (b).

Further,

section 871.21, subdivision (a) also separately time-bars Plaintiff's first three SBA claims. In the FAC, Plaintiff continues to allege that the Vehicle had a defective transmission. (FAC, ¶¶ 9-10, 14, 26, 76.) The written warranty attached to the FAC indicates that GM warranted the Vehicle for a three-year bumper-to-bumper warranty and a five-year powertrain warranty. (Id., Exh. A, at pp. 2-5.) Under section 871.21, subdivision (a), Plaintiff's SBA claims must have been "commenced within one year after the expiration of the applicable express warranty." (Code Civ. Proc., § 871.21, subd. (a).) Even applying the longer five-year warranty to this standard, Plaintiff would have still had to file the instant claims by March 3, 2025 to avoid the statute of limitations under subdivision (a). Plaintiff's original complaint was filed months after this deadline.

While section

871.21, subdivision (c) provides limited tolling exceptions to the section 871.21 limitations periods, Plaintiff once again fails to allege sufficient facts to establish that any of these specific tolling exceptions apply here. The Court has previously held that the allegations in the Complaint were largely conclusory and failed to demonstrate the applicability of the limited tolling doctrines under section 871.21, subdivision (c). (See Minute Order, 12/1/2025, at p. 3.) The FAC fails to add any relevant allegations to cure the previously identified defects in Plaintiff's tolling-related allegations. (FAC, ¶¶ 38-55.)

Plaintiff

argues that the retroactive application of section 871.21 is impermissible here. "[A] statute may be applied retroactively only if it contains express language of retroactivity or if other sources provide a clear and unavoidable implication that the Legislature intended retroactive application." (McClung v. Emp. Dev. & Dep't (2004) 34 Cal.4th 467, 475.) Here, section 871.30, subdivision (a) expressly permits a vehicle manufacturer to elect to be governed by Chapter 12 for all actions described in section 871.20, subdivision (a) "with respect to all of its motor vehicles sold in the year 2025 and in all prior years by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs." (Code Civ. Proc., § 871.30, subd. (a), italics added.) Thus, once GM "opted-in" pursuant section 871.29, Plaintiff's Vehicle would have been subject to these provisions. (Code Civ. Proc., § 871.30.) Accordingly, Plaintiff fails to demonstrate that section 871.21 does not govern the limitations period for the instant SBA lawsuit. Moreover, the application

of the statute of repose to Plaintiff's claims (filed over six years after he purchased the Vehicle) is consistent with the policies underlying a statute of repose. (*Burroughs v. Precision Airmotive Corp.* (2000) 78 Cal.App.4th 681, 689 ["A statute of repose is a legal recognition that, after an extended period of time, a product has demonstrated its safety and quality, and that it is not reasonable to hold a manufacturer legally responsible for an accident or injury occurring after that much time has elapsed."].)

As

Plaintiff's FAC fails to cure any of the defects which were previously identified in the Court's ruling on GM's prior demurrer to the first through third causes of action in the original Complaint, the Court finds that further leave to amend these causes of action would be futile. Plaintiff has not demonstrated the existence of facts which would overcome section 871.21's limitations periods. Therefore, GM's demurrer to the first through third causes of action in the FAC is SUSTAINED without leave to amend.

B. 4th

Cause of Action: Implied Warranty of Merchantability — SUSTAINED without leave to amend

GM

argues that Plaintiff's fourth cause of action for breach of implied warranty is time-barred under section 2725 of the Commercial Code. In its prior ruling on the demurrer to the original Complaint, this Court sustained GM's demurrer to the fourth cause of action on the same grounds. (Minute Order, 12/1/2025, at pp. 3-4.) The amended allegations in the FAC do not cure this defect.

"[T]he

statute of limitations for an action for breach of warranty under the Song-Beverly Act is four years pursuant to section 2725 of the Uniform Commercial Code." (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1306.) Under Commercial Code section 2725, subdivision (2), "[a] cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered." (Comm. Code, § 2725, subd. (2), italics

added; see *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 211.) “Because an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that ‘explicitly extends to future performance of the goods’” (*Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 134, citing *Comm. Code § 2725, subd. (2)*, italics added.) Thus, the statute of limitations for an implied warranty of merchantability claim begins to run upon tender of delivery.

Here,

Plaintiff’s fourth cause of action accrued at the time that the Vehicle was delivered to Plaintiff (i.e. on or around March 3, 2019) and expired four years later on or around March 3, 2023. (FAC, ¶ 6; see Minute Order, 12/1/2025, at p. 4.) As indicated above, Plaintiff did not file this lawsuit until June 30, 2025, over two years after the expiration of the four-year limitations period for his implied warranty claim. Accordingly, Plaintiff’s implied warranty claim is time-barred.

Therefore,

GM’s demurrer to Plaintiff’s fourth cause of action is SUSTAINED without leave to amend.

C. 6th

Cause of Action: Fraudulent Inducement-Concealment — SUSTAINED without leave to amend

GM argues

that Plaintiff cannot state his fifth cause of action for fraudulent inducement-concealment because: (1) it is barred by the three-year statute of limitations, and (2) it fails to allege facts demonstrating that GM owed Plaintiff a duty to disclose arising from a transactional relationship between the parties. In its prior ruling on the demurrer to the original Complaint, this Court sustained GM’s demurrer to the fifth causes of action on the same grounds. (Minute Order, 12/1/2025, at pp. 4-7.) At minimum, the Court finds that Plaintiff once again fails to allege sufficient facts to overcome GM’s statute of limitations defense to Plaintiff’s fraud claim.

Plaintiff’s

fraud claim is subject to a three-year limitations period. (Code Civ. Proc. §

338, subd. (d).) In this case, it can reasonably be inferred that Plaintiff purchased his Vehicle on or around March 3, 2019 when he received GM's written warranty. (FAC, ¶ 6.) Plaintiff alleges GM committed fraud by knowingly allowing the Vehicle to be sold to Plaintiff without disclosing that the Vehicle and its 8-speed transmission were defective. (Id. ¶ 76.) Based on these allegations, GM argues that Plaintiff's fraud claim accrued at the time of the Vehicle's sale, indicating that the three-year limitations period would have expired on or around March 3, 2022 (over three years before Plaintiff filed this lawsuit in June 2025).

In response, Plaintiff invokes the delayed discovery rule as a ground for tolling. (FAC, ¶¶ 38, 40-45.) Under the delayed discovery rule, the three-year limitations period under section 338, subdivision (d) only begins to run when the aggrieved party suspects or should suspect that her injury is caused by wrongdoing. (Brandon G. v. Gray (2003) 111 Cal.App.4th 29, 35.) "As for the belated discovery, the complaint must allege (1) when the fraud was discovered; (2) the circumstances under which it was discovered; and (3) that the plaintiff was not at fault for failing to discover it or had no actual or presumptive knowledge of facts sufficient to put him on inquiry." (Brandon G. v. Gray (2003) 111 Cal.App.4th 29, 35.) The delayed discovery rule must be pled with the same particularity that is required in fraud cases. (Ibid.)

Here, Plaintiff alleges he did not discover GM's fraudulent conduct until "shortly before the filing of the complaint" when the Vehicle's defects persisted despite GM's representations that the Vehicle had been repaired. (FAC, ¶ 41.) Even so, the allegations outlining the Vehicle's repair history contradict this vague and conclusory allegation. Specifically, Plaintiff alleges that he sought repairs for the Vehicle on two occasions: August 24, 2020 and January 2, 2021, but "continued to experience symptoms of the defects in the Vehicle, despite Defendant's representation that the various defects had been repaired." (Id. ¶¶ 18-19.) Although the FAC now states more specific allegations identifying when Plaintiff sought repairs on his Vehicle, the limited additional factual allegations in the FAC are insufficient to demonstrate the applicability of the delayed discovery rule as a basis for tolling.

First, even assuming that Plaintiff's fraud claim was tolled until shortly after the most

recent repair attempt on the Vehicle in January 2021, Plaintiff's fraud claim would still be time barred. In other words, the repair timeline identified in the FAC is inconsistent with a justification for Plaintiff's late discovery of GM's fraud because he knew or should have known that GM's statements were inconsistent with the Vehicle's performance by early 2021. Second, Plaintiff's allegations pertaining to the delayed discovery doctrine remain largely vague and conclusory. For example, Plaintiff still fails to identify how many times he sought repairs for his Vehicle or what the GM repair technicians specifically shared or withheld from Plaintiff after each attempted repair. Plaintiff also still fails to specifically plead that he could not have discovered that the Vehicle's unrepairable transmission defects earlier with reasonable diligence. (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 803 [under the delayed discovery rule, "the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action."].)

Because

the Court finds that Plaintiff's fraud claim is time-barred under section 338, subdivision (d), the Court need not address GM's remaining arguments on the heightened pleading standard for fraud.

The

Court previously sustained GM's demurrer to Plaintiff's fraud cause of action in the original Complaint on almost identical grounds. Yet, Plaintiff has added almost no additional factual details to cure the defects in pleading the delayed discovery doctrine. (Minute Order, 12/1/2025, at p. 5.) Because Plaintiff has not demonstrated the existence of facts which would overcome section 338, subdivision (d)'s three-year limitation period, and thus, the Court find that further leave to amend the fifth cause of action would be futile.

Therefore,

GM's demurrer to the fifth cause of action in the FAC is SUSTAINED without leave to amend.

Defendant

General Motors, LLC to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR

emailed to counsel and posted to court's website on 8/14/26 at 11:30 a.m.

[1] On 12/1/2025, the Court sustained

GM's demurrer to all causes of action in the original Complaint, with 20 days leave to amend. Although Plaintiff failed to amend the pleading within this 20-day period, the parties ultimately stipulated to permit Plaintiff to file a first amended complaint, which was entered as the Court's order on 6/16/2026.

[2] Hereinafter, all references to

section numbers which do not identify a specific Code refer to the Code of Civil Procedure.